



CHAPTER liv.

An Act to empower the London Electric Railway Company A.D. 1919.
to construct a new subway and for other purposes.

[15th August 1919.]

WHEREAS by the London Electric Railway Amalgamation Act 1910 the undertakings of the Baker Street and Waterloo Railway Company and the Charing Cross Euston and Hampstead Railway Company were amalgamated with the undertaking of the Great Northern Piccadilly and Brompton Railway Company (whose name was by such Act altered to the London Electric Railway Company and who are in this Act called "the Company") and by the London Electric Railway Act 1912 the undertaking of the Edgware and Hampstead Railway Company was amalgamated with the undertaking of the Company:

And whereas it is expedient that the Company should be authorised to make and maintain the subway and works in this Act described and to exercise the powers by this Act conferred and to acquire for the purposes of this Act easements and rights in and under certain lands houses and buildings in this Act described or referred to:

And whereas the Company are by the London Electric Railway Act 1913 (hereinafter called "the Act of 1913") and the London Electric Railway Act 1914 (hereinafter called "the Act of 1914") authorised to construct the railways subways and other works described therein:

And whereas by reason of the war the Company have not been able to construct the said railways subways and other works and the time limited for the construction thereof by the Act of 1913 and the Act of 1914 and the time limited by the Act of 1913 for charging to capital account the interest on money raised by borrowing on the issue of debenture stock for the

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And whereas the cost of material and labour has increased to such an extent as to render the capital created or authorised to be created by and for the purposes of the Act of 1913 and the Act of 1914 inadequate to meet the cost of constructing the said railways subways and other works and other the purposes of the said Acts :

And whereas the Company are authorised by the London Electric Railway Acts 1910 to 1914 to borrow on mortgage or raise by the creation and issue of London Electric Railway four per centum debenture stock five million two hundred and ninety-six thousand pounds of which the Company have created and issued five million and ninety-six thousand pounds leaving uncreated and unissued two hundred thousand pounds :

And whereas it is expedient that the Company should be authorised to raise additional capital in the manner and to the extent hereinafter set forth :

And whereas by indenture dated the twenty-second day of February one thousand nine hundred and seventeen and to which the Company the Metropolitan District Railway Company the Central London Railway Company and the City and South London Railway Company the London General Omnibus Company Limited and the Associated Equipment Company Limited and certain trustees and retiring trustees are parties after reciting (inter alia) that the London General Omnibus Company Limited (incorporated in the year 1858 and which sold and transferred its undertaking and assets to the London General Omnibus Company Limited above referred to in or about the year 1912) established under an indenture dated the fifteenth day of August one thousand nine hundred and twelve a superannuation fund for certain members of its staff and that the said four railway companies and the Associated Equipment Company Limited were desirous of establishing superannuation benefits for certain grades of their salaried staffs and that in order to avoid a multiplicity of superannuation funds and to secure uniformity as well as economy in operation and management and in view

of the close association between the companies parties thereto and of the fact that in numerous cases the same person held the same position on the salaried staffs of all or several of such companies provision was made for enlarging the staff superannuation fund established under the said indenture of the fifteenth day of August one thousand nine hundred and twelve (which fund is now known as and is in this Act referred to as "the omnibus railway and equipment companies staff superannuation fund") and for admitting to its benefits on the terms and conditions contained in the said indenture as modified by the said indenture of the twenty-second day of February one thousand nine hundred and seventeen and to the rules in such indenture referred to the then existing and future members of the salaried staffs of the said companies (other than those members of the staff of the Metropolitan District Railway Company who were or should become members of the Railway Clearing System superannuation fund) and for the contributions to be made to the said fund by the members of the fund and by the said companies respectively and for the management and direction of the fund by a managing committee consisting of representatives of the said companies and representatives of the members of the fund and otherwise as therein particularly mentioned:

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And whereas it is expedient that the participation of the said four railway companies in the omnibus railway and equipment companies staff superannuation fund should be sanctioned and confirmed as herein provided:

And whereas it is expedient that other powers should be conferred as in this Act contained:

And whereas plans and sections showing the lines and levels of the subway authorised by this Act and plans of the lands by this Act authorised to be acquired and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of London and are hereinafter referred to as the deposited plans sections and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the London Electric Railway Act 1919 and the London Electric Railway Acts 1893 to 1914 and this Act may all be cited together as the London Electric Railway Acts 1893 to 1919.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Works and Lands.

Part III.—Capital.

Part IV.—Miscellaneous.

Incorpora-
tion of
Acts.

3. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the following matters or contained in the following sections thereof (that is to say):—

The construction of the railway and the works connected therewith;

The settlement of disputes by arbitration;

Section 138 (As to service of notices);

The recovery of damages not specially provided for and of penalties and the determination of any other matters referred to justices; and

The provision to be made for affording access to the special Act by all parties interested;

The provisions aforesaid with regard to the construction of the railway and works connected therewith shall for the purposes of this Act be construed and read as though "subway" were therein substituted for "railway"

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The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):— A.D. 1919.

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital; and

The provision to be made for affording access to the special Act by all parties interested; and

Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by any subsequent Act.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act— Interpretation.

“The subway” means the subway by this Act authorised;

“The Act of 1893” and “the Act of 1902” respectively mean the Charing Cross Euston and Hampstead Railway Acts 1893 and 1902 respectively;

“The Act of 1910” means the London Electric Railway Amalgamation Act 1910;

“The Act of 1914” means the London Electric Railway Act 1914;

“The Acts of 1910 to 1914” means the Act of 1910 the London Electric Railway Acts of 1911 1912 and 1913 and the Act of 1914;

“The Company” means the London Electric Railway Company;

“The City Company” means the City and South London Railway Company;

“The companies” means the Company the City Company the Metropolitan District Railway Company and the Central London Railway Company;

“The authorised London Electric Railway four per centum debenture stock” means the London Electric Railway four per centum debenture stock which the Company have created and issued and are authorised to create

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and issue for the purpose of raising the sum of five million two hundred and ninety-six thousand pounds which they are by the London Electric Railway Acts 1910 to 1914 authorised to borrow on mortgage or by the creation and issue of such debenture stock;

The expression "parish clerks" and "clerks of the several parishes" in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

PART II.

WORKS AND LANDS.

Power to
make works.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the subway and works hereinafter described with all necessary and convenient lifts escalators inclines stairs approaches passages stagings sewers drains pipes wires apparatus plant machinery appliances works and conveniences connected therewith or incidental thereto and may subject as aforesaid enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for those purposes:

Provided always that (except for the purpose of making trial borings as provided by the Act of 1893 as incorporated with this Act) nothing in this Act shall authorise the Company to enter upon take or use the surface of any public street or road but (subject as aforesaid) the Company may enter upon take and use the subsoil and undersurface of any public street road footway or place shown on the deposited plans and described in the deposited book of reference or so much thereof as shall be necessary for the purposes of the works by this Act authorised without being required to purchase the same or any easement therein or thereunder.

Description
of subway.

6. The subway hereinbefore referred to and authorised by this Act will be situate in the county of London and is—

A subway situate wholly in the parish of St. Martin-in-the-Fields in the city and metropolitan borough of Westminster in the administrative county of London commencing by a junction with the southern end of the disused inclined tunnel formerly the approach to and from

the Company's Embankment Station at a point under the roadway of Northumberland Avenue twenty-four yards or thereabouts measured in a south-easterly direction from the north-eastern corner of the Playhouse Theatre and terminating by a junction with the southern end of the Company's ascending escalator tunnel in the said Embankment Station at a point under the roadway of Northumberland Avenue aforesaid forty yards or thereabouts measured in a north-westerly direction from the centre of the refuge situate at the junction of Northumberland Avenue with the Victoria Embankment.

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7. The provisions contained in the sections and parts of sections of the Acts of 1893 and 1902 which are mentioned in the First Schedule to this Act (subject to any amendment or variation by this Act) are incorporated with and form part of this Act and shall so far as applicable extend and apply to the subway and works by this Act authorised the roads under and along which the same are to be made the lands by this Act authorised to be acquired and the several bodies or persons named or referred to in those sections as fully and effectually to all intents and purposes as if those provisions had been expressly re-enacted in this Act with reference thereto respectively.

Incorporating certain provisions of existing Acts.

8. If the subway by this Act authorised be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the subway or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for completion of works.

9. With respect to the properties shown on the deposited plans which are described or referred to in the Second Schedule to this Act notwithstanding anything contained in this Act or the said plans the Company shall not be required to purchase or take the same or any part of the surface thereof and the Company may purchase and take and the owners of and other persons interested in any such property shall sell an easement or right of using the subsoil and undersurface thereof for the purposes of the undertaking of the Company and the provisions of the Lands Clauses Acts with respect to lands shall subject to the provisions of this Act extend and apply to such easement or right of user except that no such easement or right of user shall be deemed part of a house or other building or manufac-

Owners may be required to grant easements only under certain properties.

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Costs of arbitration in certain cases.

10. The tribunal to which any question of disputed purchase-money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving such sufficient particulars and in such sufficient time as aforesaid has been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Period for compulsory purchase of lands.

11. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

For protection of Metropolitan Water Board.

12. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the Company and the board have effect (that is to say):—

- (1) The provisions contained in section 67 (General provisions for protection of water gas hydraulic power and telephonic companies or undertakers under any

Electric Lighting Order) of the Act of 1902 as A.D. 1919.
extended and applied by the section of this Act of
which the marginal note is "Incorporating certain
provisions of existing Acts" to the works by this
Act authorised (in this section referred to as "the
protective section") shall be read and have effect as
if the board were a protected company within the
meaning of the protective section. Provided that the
following modifications of the protective section in
its application to the board and their apparatus shall
have effect (that is to say):—

(A) The period of twenty-eight days shall be
substituted for the period of fourteen days men-
tioned in subsections (1) and (2) of the protective
section and the period of fourteen days shall be
substituted for the period of seven days mentioned
in the said subsection (1);

(B) The President of the Institution of Civil
Engineers shall be substituted for the Board of
Trade in subsection (8) of the protective section:

(2) The Company shall not remove raise sink or otherwise
alter the position of any mains pipes valves hydrants
plugs or other works or apparatus (in this section
referred to as "apparatus") of the board or do
anything which may impede the passage of water
into or through the same without the consent in
writing of the engineer of the board or in any
manner other than the said engineer shall approve
(such consent or approval as the case may be not
to be unreasonably withheld) and until such good
and sufficient apparatus as the said engineer may
consider necessary for continuing the supply of water
has been first provided laid down and made ready
for use:

(3) The Company in executing any works under this Act
or in removing raising sinking or otherwise altering
the position of any apparatus of the board shall
make good all damage done by them to the appa-
ratus or other property of the board and shall make
reasonable compensation to the board for any loss
or damage which they may sustain by reason of any
interference with their apparatus or property:

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- (4) In executing the works authorised by this Act the Company shall not raise sink or otherwise alter the position of any apparatus of the board or alter the level of any street or road in which any such apparatus is situate so as to leave over such apparatus a covering of either less than three feet or more than five feet:
- (5) The Company shall not except by arrangement with the board execute or do any work which may involve any interference with the continuous supply of water by the board:
- (6) All works to be executed or provided under this section or under the protective section in connexion with any apparatus of the board shall be so executed and provided by and at the expense of the Company but to the reasonable satisfaction and under the superintendence of the engineer of the board and the reasonable costs charges and expenses of such superintendence shall be paid by the Company:
- (7) The provisions of this section shall except as otherwise expressly provided be in addition to and not in substitution for or derogation of any other provision of this Act to the benefit of which the board would otherwise be entitled:
- (8) If any question shall arise under this section between the Company and the board or their respective engineers or if in any case the engineer of the board withholds his consent approval or sanction a difference shall thereupon be deemed to have arisen between the Company and the board with regard thereto then and in every such case such difference shall be settled in accordance with the provisions of subsections (8) and (10) of the protective section as modified by this section.

PART III.

CAPITAL.

Power to
borrow.

13.—(1) The Company may for the purposes of their undertaking borrow on mortgage of the undertaking any sums not exceeding in the whole one million pounds by mortgaging or by the creation and issue of second debenture stock carrying

interest at the rate of four per centum per annum or at such higher rate not exceeding six per centum per annum as they think fit and such borrowing powers shall not nor shall any borrowing powers heretofore conferred on the Company be subject to reduction owing to the Company purchasing under the provisions of this Act or having prior to the passing of this Act purchased lands in consideration of rentcharges or having paid or paying under the provisions of this or any previous Act interest out of capital during construction. Such second debenture stock shall all rank *pari passu* and shall with the interest thereon be a charge on the whole undertaking from time to time of the Company but such charge or any mortgage created under this Act shall rank subject to the charge securing the authorised London Electric Railway four per centum debenture stock.

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(2) Notwithstanding anything contained in Part III. of the Companies Clauses Act 1863 or this Act (A) any subsequent Act which authorises the Company to raise money by borrowing or by mortgage or by the creation and issue of debenture stock may authorise the Company to raise the same so as to rank as regards the principal and interest thereof and the security therefor either in priority to or *pari passu* with the second debenture stock authorised to be created and issued by this Act or otherwise as such subsequent Act may provide and (B) the interest on all debenture stock which is at any time created and issued under any subsequent Act so as to rank *pari passu* with the second debenture stock authorised to be created and issued under this Act shall (subject to the provisions of such subsequent Act) have priority over all principal moneys secured by such debenture stock and by the second debenture stock authorised to be created and issued by this Act. Notice of the effect of this subsection shall be endorsed on all certificates for such last-mentioned second debenture stock.

(3) The directors of the Company may from time to time by virtue of this Act and without further or other sanction or authority exercise the powers conferred by this section but nothing in this section contained shall be deemed to limit the powers of the directors to exercise on behalf of the Company the powers conferred by any other section of this Act.

14.—(1) The directors of the Company may from time to time by virtue of this Act and without further or other sanction or authority create and issue the debenture stock or any part

Debenture stock may be redeemable.

A.D. 1919. thereof which they are by this Act authorised to create and issue so as to be redeemable either at par or at such premium (not exceeding five per centum) and at such dates or in such events and on such terms and conditions and in such manner as such directors may determine at or before the issue thereof.

(2) The Company may if the terms of issue so provide (A) call in and pay off any redeemable debenture stock so created and issued at any time before the fixed date of redemption thereof and (B) redeem such redeemable debenture stock or any part thereof either by paying off such stock or by issuing to any stockholder subject to his consent other debenture stock either redeemable or not redeemable in substitution therefor and may for the purpose of providing money for paying off such redeemable debenture stock or of providing substituted debenture stock create and issue new debenture stock either redeemable or irredeemable or re-issue debenture stock originally created and issued as redeemable debenture stock under this section. Provided that the new debenture stock so created and issued shall not make the total nominal amount of the debenture stock (both redeemable and irredeemable) from time to time issued and outstanding exceed the amount of debenture stock which the Company are for the time being authorised to create and the powers of the Company of borrowing on mortgage or by the creation and issue of debenture stock shall not by reason of section 34 of the Companies Clauses Act 1863 be cancelled by the creation and issue of redeemable debenture stock under the provisions of this section. Provided also that unless any subsequent Act of Parliament otherwise authorises (A) the new debenture stock so created and issued shall be created and issued as second debenture stock ranking *pari passu* as regards principal interest and security with the second debenture stock authorised to be created and issued by this Act and (B) redeemable second debenture stock which is re-issued shall only be re-issued as such second debenture stock as aforesaid (either redeemable or irredeemable).

(3) If the Company deposit any redeemable debenture stock to secure advances from time to time on current account or otherwise such debenture stock shall not be taken to have been redeemed by reason only of the account of the Company having ceased to be in debit while such debenture stock remains so deposited.

(4) The Company may set aside out of revenue after providing for the payment of interest on any loan or on any guaranteed preference or debenture stock of the Company and for other fixed charges and obligations such sums as they may consider proper for the purpose of forming a fund for the redemption at maturity of any redeemable debenture stock which under the conditions of the creation and issue thereof is to be redeemed wholly or partly in cash and the Company may invest any sums so set apart and the income therefrom in any securities in which trustees are for the time being by law authorised to invest trust funds or in any other securities (not being securities of the Company except as hereinafter provided) in which they may be authorised to invest those sums by a resolution passed at a general meeting of the Company.

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Any sums so set apart shall be applied for the redemption at maturity of any redeemable debenture stock for the redemption of which they have been set apart but may if the directors of the Company think fit be also at any time applied in the purchase of any such stock at a price not exceeding the redemption price and any redeemable debenture stock so purchased shall be cancelled.

15. Section 38 (the marginal note of which is "For appointment of a receiver") of the Act of 1914 is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under such provision. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

For appointment of a receiver.

16. The principal moneys secured by all mortgages granted by the Company before the passing of this Act in pursuance of the powers of any former Act of Parliament and subsisting at the passing hereof shall during the continuance of any such mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Act.

Existing mortgages to have priority.

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Receipt in
case of per-
sons not sui
juris.

Application
of moneys.

Power to
issue stock
warrants
and debenture
stock
certificates
to bearer.

Interest
on debenture
stock.

Power to Com-
pany and
others to par-
ticipate in
omnibus
railway and
equipment

17. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

18. All moneys raised under the Acts of 1910 to 1914 and this Act or any of them whether by preference stock or debenture stock or borrowing shall be applied only to purposes of the undertaking of the Company being purposes to which capital is properly applicable.

19.—(1) The Company may with respect to the whole or any portion of fully paid up debenture stock authorised by this Act and subject to such regulations as may from time to time be made by the Company issue under their common seal certificates (hereinafter referred to as “debenture stock certificates to bearer”) stating that the bearers of the certificates are entitled to the debenture stock therein specified and may provide by coupons whether attached to the certificates or not for the payment of interest on the debenture stock included in the certificates.

(2) Sections 39 to 52 (inclusive) of the Act of 1910 shall extend and apply to debenture stock certificates to bearer issued under this Act as if the same had been re-enacted in this Act in reference thereto.

20. The Company may charge to capital account the interest accruing during the periods of construction limited by the Acts of 1913 1914 and this Act for the construction of the railways subways and works by such Acts respectively authorised as extended by any Order or Orders of the Board of Trade pursuant to the Special Acts (Extension of Time) Act 1915 on all money raised by borrowing or by the issue of debenture stock for the purpose of providing for the construction or equipment of such railways subways and works and for general capital purposes.

PART IV.

MISCELLANEOUS.

21. The companies shall be deemed always to have had and at all times hereafter to have power to participate in the omnibus railway and equipment companies staff superannuation fund and to concur in and execute and to modify the trust deeds

and rules for the time being governing and regulating the said fund and to make the payments to the fund which are provided for by such trust deeds and rules and such payments shall be deemed to be working expenses of the companies respectively making the same.

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companies
staff super-
annuation
fund.

22.—(1) The companies or any of them may either alone or in conjunction with another or others of them or in conjunction with any other railway or other statutory or limited company or companies establish a pension fund for the payment of pensions or retiring and superannuation or other allowances to persons who are or shall be or shall have been officers or servants of the companies or any of them (including joint officers or servants of any two or more of them or of any such fund) but who are not qualified for admission to the omnibus railway and equipment companies superannuation fund (including officers and servants of any fund so established or participated in) or the companies or any of them may enter into and carry into effect agreements with any insurance company or other association or company for securing to any of such officers and servants pensions and allowances as aforesaid or may participate in any existing pension fund of any other railway or other statutory or limited company or companies which will provide for such pensions and allowances as aforesaid.

Provisions
as to pen-
sions.

(2) The companies or any of them may subscribe for and hold (by themselves or their nominees) shares in and securities of any company or association which may be formed for the purpose of providing such pensions and allowances as aforesaid for the benefit of the officers and servants of the companies or any of them and any other railway or other statutory or limited company or companies.

(3) It shall not be obligatory on any present or future servant of the companies or any of them who is not of a grade entitled to admission to the omnibus railway and equipment companies staff superannuation fund or to the Railway Clearing System Fund Corporation to become a member of any such fund as aforesaid or to become a party to any arrangement for securing to him any pension or retiring or superannuation or other allowance as aforesaid.

(4) The companies or any of them may guarantee and make payments to any such fund or company or association as aforesaid and any such payment made by any of the companies

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(5) The directors of any of the companies may appropriate and set aside in each half year out of the revenue of such company as a working expense such sum as they may think fit in order to provide a fund for the making of any such payment as aforesaid.

(6) Nothing in this Act shall affect the right or power of the companies to grant out of their own funds and revenues such pensions and allowances to any officers and servants of the companies as the directors of the companies may think fit.

Agreements.

23. The Company on the one hand and the City Company on the other hand may enter into and carry into effect vary and rescind agreements with reference to the construction of any work or the exercise of any power right or privilege authorised or conferred on the Company or the City Company respectively by the London Electric Railway Acts 1893 to 1914 and this Act and the City and South London Railway Acts 1884 to 1913 or any other Act or Acts relating to the Company and the City Company or either of them or any matter or thing relating to or affecting the working management and use of the respective undertakings of the Company and the City Company and the traffic thereon or the provision maintenance and user of joint rolling stock for use on and over the respective railways of the Company and the City Company or the making of annual or other payments relating to any of the matters aforesaid and the Company and the City Company may respectively apply their capital and revenues for the purposes of any such agreement.

Crown
rights.

24. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any land or hereditaments (including the subsoil and undersurface of any street road or footway) or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give).

Power to
apply
corporate

25. The Company may apply to the purposes of this Act or to the general purposes of their undertaking being in all

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cases purposes to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stocks or debenture stock or borrowing by virtue of the Acts 1910 to 1914 or this Act and which may not be required for the purposes to which they are by the London Electric Railway Acts 1893 to 1914 or this Act made specially applicable.

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funds to
purposes of
Act.

26. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Deposit for
future Bills
not to be
paid out of
capital.

27. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act.

Provision as
to general
Railway
Acts.

28. All costs charges and expenses of and incident to the preparing and applying for and the obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of
Act.

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FIRST SCHEDULE.

SECTIONS AND PROVISIONS OF THE ACTS OF 1893 AND 1902
WHICH ARE INCORPORATED WITH THIS ACT.

Marginal Note of Section.	Number of Section.
ACT OF 1893.	
Persons authorised to convey lands may grant easements - -	33
Power to sell &c. lands - - - - -	34
Power to deviate laterally - - - - -	35
No ventilators &c. to be made in roadways or footways - -	39
Provision as to cellars under streets not referenced - -	40
Conditions to be observed in opening road for boring purposes -	41
As to carting materials and soil - - - - -	42
For the protection of sewers of the Council - - - - -	44
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A.D. 1919.

DESCRIBING PROPERTIES UNDER WHICH EASEMENTS ONLY
ARE TO BE TAKEN.

Where Situate.	No. on deposited Plan.
Parish of St. Martin-in-the-Fields in the city and metropolitan borough of Westminster in the county of London.	1

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